

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
COLIN WASHINGTON,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
DIWAN GURUNG (Shield # 21641), NYPD OFFICER
JORGE DELGADO-ALONZO (Shield #19476),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
New York County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 13, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER DIWAN GURUNG (Shield # 21641), 30th Precinct, 451 West 151st Street, New York, NY 10031

NYPD OFFICER JORGE DELGADO-ALONZO (Shield # 19476), 30th Precinct, 451 West 151st Street, New York, NY 10031

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
COLIN WASHINGTON,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
DIWAN GURUNG (Shield # 21641), NYPD OFFICER
JORGE DELGADO-ALONZO (Shield #19476),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.
-----X

Plaintiff **Colin Washington**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory

and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER DIWAN GURUNG, assigned Shield # 21641, who at the time of this incident was employed with the 30th Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER DIWAN GURUNG (Shield # 21641) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER JORGE DELGADO-ALONZO, assigned Shield # 19476, who at the time of this incident was employed with the 30th Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER JORGE DELGADO-ALONZO (Shield # 19476) is being sued in his individual capacity and official capacity.
8. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
10. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h) hearing examination of Plaintiff on March 24, 2021.

STATEMENT OF FACTS

17. On May 18, 2020 at approximately 5:50 a.m. inside of the New York City Subway station at 145th Street and Broadway in New York County, numerous police officers from the 30th Precinct, and

other unknown police commands, including upon information and belief, defendant NYPD Officers Diwan Gurung (Shield # 21641) and Jorge Delgado-Alonzo (Shield # 19476), and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

18. On May 18, 2020 at approximately 5:50 a.m., Plaintiff was waiting for the 1 subway train inside of the subway station at 145th Street and Broadway in New York County, when he saw a gentleman on the platform, likely intoxicated, fall over, hit his head, and then get back up. Plaintiff then saw a third person on the platform approach the gentleman, and while feigning interest in his well-being, hugged him while simultaneously removing the gentleman's wallet from the back pocket of his pants. As a result, the two individuals began to fight, and continued to do so for a prolonged period of time. Plaintiff observed the fight from a distance of approximately 50 feet.
19. At some point, the man who committed the robbery fled the subway station, going up the stairs to street level. The victim of the robbery, badly beaten, with a bleeding, bruised and swollen face, approached Plaintiff and another bystander on the platform and asked for help. Plaintiff and the bystander escorted the victim off the platform through the exit gate, and Plaintiff aided the victim up the stairs to street level.
20. After reaching the street, Plaintiff and the victim saw the man who had committed the robbery fleeing on Broadway. The victim asked Plaintiff to help him chase the person, and offered him money for his assistance in doing so. Plaintiff declined, and instead asked the victim if he needed the police or medical attention. At some point during this conversation, Plaintiff's wallet and keys fell to the ground from a hole in his pants. The victim, still disoriented and intoxicated, grabbed them, saying to the Plaintiff, in sum and substance "give me my stuff." Plaintiff stated that the

wallet in keys were in fact his, and took them back. In response, the other gentleman yelled out that he was being robbed, while running around in the area.

21. Plaintiff noticed a police car in the immediate vicinity, approached the vehicle and began to explain the situation to the NYPD officers therein. Despite the fact that Plaintiff was attempting to inform the officers that a robbery had been committed by another individual, and that the victim before them needed assistance, the officers seized Plaintiff and inquired only whether he was on parole.
22. By this point, approximately seven uniformed NYPD officers had arrived on the scene, including, upon information and belief, defendant NYPD Officers Diwan Gurung (Shield # 21641) and Jorge Delgado-Alonzo (Shield # 19476). Plaintiff was then taken into custody and searched. The defendant NYPD officers recovered no contraband or stolen items, and found only Plaintiff's keys and wallet, with Plaintiff's bank debit card therein.
23. Several defendant NYPD officers questioned the victim, who informed them that he was robbed of \$800, and when shown the Plaintiff's wallet, informed the officers that it was not the wallet that had been stolen from his pants pocket.
24. Nevertheless, Plaintiff was formally arrested and placed in an NYPD car. Plaintiff was handcuffed by defendant NYPD officers in an extremely tight fashion, causing Plaintiff discomfort in his wrists. Plaintiff was then driven around for approximately four hours with his handcuffed hands folded behind and beneath him. Plaintiff was then taken to the 30th Precinct, where Plaintiff informed defendant NYPD officers of the pain in his wrists from the aggressive handcuffing during the lengthy car ride. After approximately five hours, Plaintiff was taken to the hospital where he was diagnosed with a contusion and given ice and ibuprofen. After treatment,

Plaintiff was taken back to the 30th Precinct, where he was detained for an additional five hours before he was taken to Manhattan Central Booking.

25. While plaintiff was incarcerated at the 30th precinct and Manhattan Central Booking, NYPD defendants falsely and maliciously told the New York County District Attorney's Office that Plaintiff had committed the crime of Robbery in the Second Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
26. Bail was set at Plaintiff's arraignment, and he remained incarcerated at Rikers Island for 47 days, at which point Plaintiff was able to make bail. During and after his release, Plaintiff attended approximately eight court appearances. All charges against Plaintiff were dismissed and sealed on July 12, 2021.
27. Plaintiff's arrest and detention took place during a peak period of the ongoing Covid-19 Pandemic. Thus, the actions of Defendant NYPD Officers, including Defendant NYPD Officers Diwan Gurung (Shield # 21641) and Jorge Delgado-Alonzo (Shield # 19476), in illegally arresting Plaintiff and causing a criminal proceeding against him to commence directly jeopardized Plaintiff's health as he was detained for 47 days inside of squalid and unventilated New York City Department of Correction Facilities, which were utterly lacking in proper protections and protocols to prevent the spread of Covid-19. During his incarceration, Plaintiff lost approximately 15 pounds, and seven family members or close friends died from Covid-19, precluding Plaintiff's ability to attend any memorial services for those lost. Additionally, as a direct result of Plaintiff's incarceration, he was unable to see his wife and his then-four-year-old child for 47 days, and he lost his full-time job as a maintenance foreman, where he earned approximately \$20 an hour.

FIRST CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

28. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 27 as if fully set forth herein.
29. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
30. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
31. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

32. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
34. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
35. Defendants commenced and continued a criminal proceeding against Plaintiff.

36. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
37. The prosecution and criminal proceedings terminated favorably to Plaintiff on July 12, 2021.
38. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
39. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

40. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.

44. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
45. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. Defendants owed a duty of care to Plaintiff.
50. Defendants breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
51. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
52. All of the foregoing occurred without any fault by Plaintiff.
53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

54. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
56. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great physical and emotional injuries.
57. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
59. All of the aforementioned acts of defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
60. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
62. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
63. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
65. As a result of the aforesaid conduct by defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
66. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
68. Plaintiff person was searched by defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
69. As a result of the aforesaid conduct by defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
70. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crime of Robbery in the Second Degree.
73. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed the act of Robbery in the Second Degree, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.
74. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
75. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

77. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
79. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
80. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

82. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff committed act of Robbery in the Second Degree.
83. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
84. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
85. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
86. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
87. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
88. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

89. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
90. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
91. Defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
92. Specifically, defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
93. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICERS DIWAN GURUNG and JORGE DELGADO-ALONZO and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on July 12, 2021.
94. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

96. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
97. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
98. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

99. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
100. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
101. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
102. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
103. The acts complained of deprived the Plaintiff of their right:
- F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

WHEREFORE, COLIN WASHINGTON, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 13, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER DIWAN GURUNG (Shield # 21641), 30th Precinct, 451 West 151st Street, New York, NY 10031

NYPD OFFICER JORGE DELGADO-ALONZO (Shield # 19476), 30th Precinct, 451 West 151st Street, New York, NY 10031

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 13, 2022

Sydney O'Hagan, Esq. /s/ Sydney O'Hagan